OFFICE OF THE COMMISSIONER OF CUSTOMS (GENERAL)
AIR CARGO COMPLEX, SAHAR, ANDHERI (E)
MUMBAI:- 400 099

F.No. S/43-CHS-15/2016-17 ACC **Date : 15. 11.2016**

NOTICE INVINTING E-TENDER

NOTICE FOR INVINTING e-TENDER FOR HIRING OF VEHICLES FOR ONE YEAR IN THE OFFICE OF THE COMMISSIONER OF CUSOMS (GEN), AIR CARGO COMPLEX, SAHAR, ANDHERI (E) MUMBAI-400099.

The Commissioner of Customs (General), Air Cargo Complex, Sahar, Andheri (E), Mumbai:- 400 099, invites e-tender for hiring of 02 vehicles for a period of one year from **01.01.2017 to 31.12.2017**. The e-tender is invited in two parts i.e (1) Technical Bid/Qualifying bid and (2) Financial Bid. The e-tender form for qualifying bid prescribed in Annexure-I and the e-tender form for the financial bid prescribed in Annexure-II complete in all respect shall be submitted on-line on or before **06.12.2016**.

All the prospective bidders are invited to submit their bids under Two Bid System for the subject work as detailed below in accordance with the tender documents enclosed.

MODE OF TENDERING	:-	e-Tendering through our portal www.eprocure.gov.in
EARNEST MONEY DEPOSIT	:-	Rs.40,000/-
PERIOD OF HIRING	:-	ONE YEAR FROM (**01.01.2017 to 31.12.2017**)
PRE BID MEETING (PBM)	:-	21.11.2016
VENUE FOR PBM	:-	CHS Section, Air Cargo Complex, Sahar, Andheri(E) Mumbai:- 400 099
LAST DATE AND TIME FOR SUBMISSION OF BID/TENDER	:-	06.12.2016 (1500 hrs)
DATE & TIME FOR OPENING TECHNICAL/QUALIFYING BID	:-	07.12.2016 (1400 hrs)
DATE & TIME FOR OPENING FINANCIAL BID	:-	09.12.2016 (1400 hrs)
CURRENCY	:-	Bidder should quote their price in INR only.

The e-tender form can also be downloaded from www.eprocure.gov.in

(SHASHANK DWIVEDI)
DEPUTY COMMISSIONER OF CUSTOMS
CHS/ACC

Copy to:-
i. EDI for posting on Customs Website.

OFFICE OF THE COMMISSIONER OF CUSTOMS (GENERAL)
AIR CARGO COMPLEX, SAHAR, ANDHERI (E), MUMBAI:-400 099

F.No. S/43-CHS-15/2016-17-ACC **Date: 15. 11.2016**

E-TENDER NOTICE

NOTICE FOR INVINTING e-TENDER FOR HIRING OF VEHICLES FOR A PERIOD ONE YEAR (FROM 01.01.2017 TO 31.12.2017) IN THE OFFICE OF THE COMMISSIONER OFCUSTOMS (GEN), AIR CARGO COMPLEX, SAHAR , ANDHERI (E), MUMBAI-400099.

The Commissioner of Customs (Gen) Air Cargo Complex, Sahar, Andheri (E), Mumbai:- 400 099 invites e-tender under two bid system (Technical Bid and Financial Bid) for hiring of 02 vehicles for a period of one year from 01.01.2017 to 31.12.2017.

01. e-Tendering process

The tender is invited in two parts i.e (1) Technical bid/Qualifying Bid and (2) Financial bid. The e-tender form for technical/qualifying bid as prescribed in Annexure-I and the e-tender form for the financial bid prescribed in Annexure-II duly complete in all respect shall be submitted online on www.eprocure.gov.in on or before 06.12.2016 (1500 HRS) in two separate files in folders addressed to Commissioner of Customs (Gen), Air Cargo Complex, Sahar, Andheri(E), Mumbai:- 400 099. The Technical/Qualifying Bid shall be opened by the e-Tender Opening Committee on 07.12.2016 at 1400 hrs. Incomplete bid documents shall be rejected. The valid bids shall be scrutinized by the Tender Committee to shortlist the eligible bidders. Thereafter, the financial bids of the short listed eligible bidders shall be opened on 09.12.2016 at 1400 hrs by the Tender Committee.

02. Submission of bids:-

Bids have to be submitted online through e-tender website i.e. www.eprocure.gov.in before the scheduled date & time. Bidders should submit the Technical as well as Financial bids through e-tendering portal only. Scanned copies of all relevant documents as mentioned in Annexure I, should be attached with the bid. Bids submitted by Courier/Post/in-person shall not be accepted in this tender.

03. Earnest Money Deposit:-

Earnest Money Deposit (EMD) in the form of Demand Draft/Bank Guarantee of requisite amount of Nationalized Bank in favour of Commissioner of Customs (Gen), ACC, Mumbai should be submitted prior to bid opening date and time in sealed envelope and also upload a scanned copy of EMD while submitting the bid electronically. If the hard copy of EMD is not received within the stipulated period, the bidder shall be disqualified.

04. BANK GUARANTEE:-

On receipt of intimation of award of contract from the Department, the successful vendor/bidder shall submit a Performance Security Deposit in the form of Bank Guarantee to the extent of 10% of the total annual contract value issued by a nationalized bank within 10 days of the award of annual contract. The bank guarantee shall be in favour of 'President of India (through the Commissioner of Customs (Gen)), Air Cargo Complex, Sahar, Andheri (E), Mumbai - 400 099) and it shall be the responsibility of the contractor to keep this bank guarantee valid for a period of two months beyond the date of fulfillment of all contractual obligation to the mutual consent of the department and the contractor.

05. SCOPE OF WORK:-

The vehicles are proposed to be hired for 30/31 days in a month subject to a maximum of 2500 km in a month.

TYPE OF VEHICLES TO BE PROVIDED :-

Sr. No.	Type of vehicles	No. of vehicles.	Category /Terms of use
1.	**Mid Sized Vehicles** (Maruti Swift Dzire/SX4/Vento/Etios or any other equivalent vehicle)	02	30-31 days a month, Maximum of 2500 kms (including Sundays and other holidays)

06. ELIGIBILIRTY CRITERIA:-

(i) the applicant should not have been penalized for default in the services by the earlier "customer", if so, the applicant shall stands disqualified.

(ii) The bidder/contractor should have an experience of running a fleet of vehicles on hiring basis for at least 2 years with Government/Semi Government Organization / Banks/PSUs. Scanned copies of the same should be submitted on e-tender.

(iii) The vehicles shall not be older than three years and shall be in good working condition.

(iv) The bidder has to submit the scanned copy of an undertaking on his letterhead declaring as follows :-

(a) if my quotation is accepted, the vehicles to be provided/supplied will not be more than 3 years old i.e the manufacturing date will be after April-2014. The colour of the vehicle will be preferably white.

(b) the vehicles to be provided/supplied will have a valid insurance and PUC certificate throughout the contract period.

(c) we have not been debarred by any Government Office/Semi Government Office/PSUs/Banks for any default for such services in the past.

(v) The cost ceiling for hiring such vehicle is Rs.40,000/- pm per vehicle exclusive of Service Tax. The rate quoted by the bidders shall be exclusive of Service Tax.

(vi) The contractor shall provide dedicated vehicles & drivers and any change in vehicles and/or drivers should be made only in exceptional circumstances. Replacement of vehicle/driver should be provided in the event of a breakdown of vehicle/non availability of driver.

(vii) The drivers should be having valid Driving Licence, with a minimum experience of 3 years in Mumbai and their antecedents should be duly verified by the contractor.

(viii) Payment of charges agreed upon shall be made every month, if the contract does not commence in the beginning/end of a month, in such cases the payment of charges will be made on a proportionate basis.

(ix) The vehicle shall be deemed to be at the disposal of the Commissioner of Customs (GEN), ACC during the period of official use and the billing for kms and hours shall be made from the reporting place to the relieving place.

(x) The liability on account of fuel, driver & all expenses relating to maintenance, insurance, parking, toll etc. of the vehicle would, solely and wholly, be the responsibility of the contractor and the Commissioner of Customs, ACC will not bear any liability except the approved hiring charges.

(xi) The contract between the Commissioner of Customs (GEN), ACC and the contractor can be suspended/terminated/cancelled with a notice period of one month from either side, by assigning a reason.

(xii) The contractor should be registered with the authority concerned or State or Central Government and should fulfill the conditions prescribed in Section 66 of the Motor Vehicle Act, 1988 for hiring of vehicles. The contractor shall take insurance cover protecting the agency against all claims applicable under the Workmen's Compensation Act, 1948. The contractor shall arrange necessary insurance cover for any persons deployed by him even for a short duration. The Commissionerate shall not entertain any claim arising out of mishap, if any, which may take place.

(xiii) The contractor will indemnify for loss/damage of property or life because of negligence of driver or poor maintenance of vehicle or due to an accident.

(xiv) In case of non-compliance of the above terms and conditions of contract, a penalty may be levied. The penalty for some of the defaults is as under:-

Sr.No.	Nature of default	Penalty Rs.
01.	Late Reporting	Rs.250/- per hour
02.	Non Reporting	Rs. 2,500/- per day
03.	Poor maintenance of vehicles	Rs. 3,000/- per month
04.	Refusal of duties	Rs.2,500/- per day
05.	Vehicles kept unclean	Rs. 250/- per day.

(xv) The drivers employed alongwith the vehicle should satisfy the following conditions:-

a) Driver should have minimum 3 years of experience of driving in Mumbai with valid driving licence issued by the State Authority.
b) Driver should be well versed with the roads and the places in Mumbai city and should have experience in city driving
c) Once the driver has been allotted to a particular vehicle, he should remain with the same vehicle for a period of at least 1 year. Any change in the designated driver should be intimated to the concerned officers 24 hours before such change is affected.
d) Driver should be provided with a mobile phone.
e) Driver should be in proper uniform at all the times while performing the duties.
f) Driver should be well-mannered and well behaved and should not have any criminal cases against him and should not have any past history of accidents.
g) Car should be kept clean and odour free, suitable for official use.

(xvi) The vehicles shall be for exclusive use of this office and should not be used by the service provider for any other purpose even after completion of the Customs duties.

(xvii) The vehicle shall be made available on all days including Saturday, Sunday & Holidays, if required.

(xviii) The service provider should have sufficient numbers of the vehicles and drivers with them. In case of break-down of vehicle or non-availability of driver at any time, the firm shall provide substitute vehicle/ driver as the case may be. Substitute Vehicles to be provided immediately.

(xix) In case the hired vehicle does not report within the reasonable time or does not report at all, the Commissioner of Customs (GEN), ACC would have a right to hire a vehicle from the market and the additional cost incurred by the Commissioner of Customs (GEN), ACC will borne by the Contractor. In case, neither a substitute vehicle is provided nor a vehicle is hired by the CC,ACC, proportionate contract charges are liable to be deducted from the contract charges payable. This would be in addition to the penalty levied as indicated in para xiv above.

(xx) If there is allotment of the additional vehicle for Commissioner of Customs, ACC during the contract period, it will be given on contract at the same rate and the same terms and condition as per the prevailing agreement.

(xxi) The Commissioner of Customs (GEN), Air Cargo Complex, reserves the right to accept or reject any part of the tender or whole tender, without assigning any reason.

(xxii) The service provider would ensure that the drivers employed have valid driving license and clean driving record. The driver of the vehicle provided must follow traffic rules and all other regulations prescribed by the Govt. from time-to-time. The driver shall observe all the etiquettes and protocol while performing his duty & shall be neatly dressed in proper uniform.

(xxiii) A daily record indicating time and mileage for each vehicle shall be maintained by the driver in a log book in format as per the Government's instructions. The log book shall be submitted to the MTO/CHS in the office of the Commissioner of Customs (General), ACC, Mumbai, regularly for scrutiny. The time and mileage shall be taken into account from the reporting/relieving point.

(xxiv) Financial bids of only those service providers would be opened, who have qualified in technical bids.

(xxv) On awarding of the contract, the service provider has to furnish certified copies of RC books / Insurance / PUC copies in respect of all hired vehicles to O/o Commissioner of Customs (General), ACC, Mumbai.

(xxvi) The service provider will comply with the Labour Laws in force and all liabilities in this connection will be theirs.

(xxvii) The Department will not be under any obligation, legal or otherwise, to provide any employment to any of the personnel of the service provider during or after the expiry of the contract/hire period. The Department recognizes no employer-employee relationship between the Department and the personnel deployed by the service provider. The Department shall not be responsible financially or otherwise for any injury to the vehicle or driver or person deployed by the service provider during the course of contract.

(xxviii) Any matter during the period of this agreement, which has not been specifically covered by this agreement, shall be decided by the Commissioner of Customs (General), ACC, Mumbai, whose decision shall be final and conclusive.

(xxix) The Service Provider shall undertake to indemnify the department against all damages / charges arising on account of or connected with the negligence of the service provider or his staff or any person under his control whether in respect of accident injury to the person or damages to the property of any member of the public or any person.

(xxx) All expenses relating to salary and allowances of the driver shall be borne by the Service Provider. Like wise all expenditure related to the vehicle including insurance, maintenance, toll charges, parking charges & fuel etc. will also be borne by the Service Provider.

(xxxi) This office reserves the right to accept or reject any tender, even the lowest one, without assigning any reason thereof. Further, this office reserves the right to scrap the entire tender process at any stage without assigning any reasons thereof.

(SHASHANK DWIVEDI)
DEPUTY COMMISSIONER OF CUSTOMS
CHS/ACC

ANNEXURE I

1. Name, Address & Telephone no. of the Service Provider

2. Name and address of the Propriteror / Partner / Director

3. **QUALIFYING CRITERIA FOR TECHNICAL BID** :-

1.	We own Vehicles	YES/NO
2.	The Vehicles are registered as commercial vehicle	YES/NO
3.	We have attached undertaking as per clause (iv) of eligibility Criteria	YES/NO
4.	We have valid Service Tax registration	YES/NO
5.	We have attached copy of Service Tax registration Certificate	YES/NO
6.	We have valid PAN	YES/NO
7.	We have attached copy of PAN	YES/NO
8.	Income Tax Returns for the last three years filed	YES/NO
9.	We have attached copies of the I.T. returns for the last three years (i.e. 2014-15, 15-16 & 16-17)	YES/NO
10.	We have attached scan copy of Earnest Money Deposit	YES/NO

4. **ADDITIONAL EVALUATION CRITERIA**

A) Total no. of commercially registered vehicles owned ____ No.s

B) In 2016-17 whether provided vehicles on hire basis for over six months to the Central Govt./State Govt./PSUs/Banks YES/NO

C) If reply to (A) above is yes, then provide names of the Offices :-

I.
II.
III.

5. Have your concern/firm/company have ever been black listed by any organization YES/NO

6. Have your entrepreneur / partner /director convicted under any Law YES/NO

ANNEXURE-II

To,

The Deputy Commissioner of Customs, CHS
Air Cargo Copmplex, Sahar, Andheri (E)
Mumbai-400099.

Sir,

Sub :- Submission of financial bid for hiring 02 operational vehicles by O/o The Commissioner of Customs, Air Cargo Complex, Sahar, Andheri (E), Mumbai-reg.

Ref:- Tender Notice No. S/43-CHS-15/2016-17 ACC dated 15.11.2016.

With reference to the above, I/We hereby submit the quotation for hiring 02 operational vehicles.**Rate Chart per Vehicle (exclusive of Service tax) is as follows:-**

Sr. No.	Type of vehicles	No. of veh.	Vehicle make and model **(to be filled by bidder)**	Category /Terms of use	Amount (Rs.) (per Vehicle/per Month) **(To be filled by bidder)**
1.	**Mid Sized Vehicles** (Maruti Swift Dzire/SX4/Vento/Etios or any other equivalent vehicle)	01		30-31 days a month, Maximum of 2500 kms (including Sundays and other holidays)	
2	**Mid Sized Vehicles** (Maruti Swift Dzire/SX4/Vento/Etios or any other equivalent vehicle)	01		30-31 days a month, Maximum of 2500 kms (including Sundays and other holidays)	

Date:

Place: Signature of the Bidder

DECLARATION:

I/We hereby certify that information furnished above is true and to the best of my/our knowledge. I/we understand that if any deviation is of and in above statement at any state, I/We shall be blacklisted and will not have any dealing with department in future. I/We have read the terms and conditions of the Tender Notice along with its Annexures.

I hereby confirm that I am authorized to sign the Tender Document.

Signature & Name of the authorized Signatory
Seal / Stamp